

Court No. - 39

Case :- WRIT - C No. - 1520 of 2019

Petitioner :- Vijay Shankar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ashwani Kumar Srivastava, Ajay Kumar Srivastava

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Mr. Ashwani Kumar Srivastava, learned counsel for the petitioner and Mr. Narendra Kumar Tiwari, learned counsel for the respondent Nos. 2 and 3.

The petitioner is seeking quashing of the recovery citation certificate dated 19.11.2018 whereby a sum of Rs. 1,15,241/- is sought to be recovered from the petitioner as electricity dues.

It is submitted that the petitioner is ready to deposit the amount, if some suitable installments are fixed.

In para 10 of the writ petition, it is stated that the petitioner is facing acute financial crisis.

In our opinion, the petitioner has a remedy under Clause 6.14 of the Electricity Supply Code, 2005 by approaching the respondent No. 3 Executive Engineer for fixation of installments.

In view of the above, this writ petition is disposed of with a direction that if the petitioner approaches the respondent No. 3-Executive Engineer (authorised authority) Electric Distribution Division Robertsganj Eastern, Electricity Distribution Corporation Limited Sonbhadra along with a certified copy of this order and his representation on 31st January, 2018 at 11.00 A.M. the respondent No. 3-Executive Engineer (authorised authority) Electric Distribution Division Robertsganj Eastern, Electricity Distribution Corporation Limited Sonbhadra shall give the petitioner an opportunity of hearing and decide his representation in accordance with law within a further period of 15 days.

Subject to the petitioner complying with the direction given herein above, the recovery in pursuance of the impugned recovery citation dated 19.11.2018 shall remain in abeyance and shall be subject to any final order which may be passed by

the respondent No. 3-Executive Engineer (authorised authority)
Electric Distribution Division Robertsganj Eastern, Electricity
Distribution Corporation Limited Sonbhadra.

It is made clear that the Court has not adjudicated the claim of
the petitioner on merit.

Order Date :- 17.1.2019

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